

Court No. - 37

Case :- WRIT - C No. - 18031 of 2013

Petitioner :- M/S Supreme Ceramics Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra

Hon'ble Sheo Kumar Singh,J.

Hon'ble Sudhir Kumar Saxena,J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the respondents.

The petitioner, in this writ petition, assails several defective bills on technical grounds.

It is submitted by Sri Mayank Agrawal, learned counsel for the petitioner that the respondents have not adhered to clause 6.1 (g) and 4.36(a) of the U.P. Electricity Supply Code, 2005. He drew attention of the Court to the above clause and submitted that 15 days is required to be given for payment of the bills. He further submits that the petitioner is ready to deposit the bills, if 15 days' time is given to deposit the amount.

Submission is that bill is dated 22.3.2013 and, therefore, 15 clear days is to be given to the petitioner to deposit the bill.

Sri Nripendra Mishra, learned counsel submits that the relevant provisions of the Act will be adhered for depositing the bill.

In view of the aforesaid, we dispose of the writ petition by giving direction to the respondents to deposit the entire bill amount, as stated in the bill dated 22.3.2013 by 10.4.2013. Small protection is given on account of the fact that parties entered into litigation and some time consumed therein.

It is always better for the authority to follow the provisions of the Act henceforth.

Writ petition stands disposed of.

Order Date :- 4.4.2013

Sachdeva